

Insurance - Senior Managers Regime - Transitional Provisions

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1

Application and Definitions

1.1

Unless otherwise stated, this Part applies to:

1. (1) a _firm_ that, on the _effective date_, has a _Part 4A permission_ for _effecting contracts of insurance_ or _carrying out contracts of insurance_ and which will with effect from 1 January 2016 be:
 1. (a) a _UK Solvency II firm_ ;
 2. (b) a _third country branch undertaking_ (other than a _Swiss general insurer_); or
 3. (c) a _UK ISPV_ ;
2. (2) the _Society_, as modified by 9; and
3. (3) managing agents, as modified by 9.

1.2

In this Part, the following definitions shall apply:

commencement date

means 7 March 2016.

continued approval

means approval to perform a _PRA senior management function_ under section 59 of _FSMA_, granted pursuant to _conversion notification_.

effective date

means 19 August 2015.

FCA activities

means a function which would, except for any of the following provisions in SUP TP 7.2.3R of the _FCA Handbook_, be an _FCA governing function_ :

1. (1) Part 1 (Solvency II firms other than insurance special purpose vehicles and third-country insurance and reinsurance undertakings) Notes 1 and 2;
2. (2) Part 2 (Insurance special purpose vehicles) Notes 1 and 2; and
3. (3) Part 3 (Third-country insurance and reinsurance undertakings) Note 1.

scope of responsibilities form

has the meaning given in Senior Insurance Managers Regime ? Applications and Notifications as at 7 March 2016.

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General

2.1

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Grandfathering Notification Requirements

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Procedure for Making Grandfathering Notifications

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Withdrawing or Updating a Grandfathering Notification

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Table of Equivalent Functions for Conversion

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6.3

1. (1) If, in relation to a _firm_ , a _PRA senior management function holder_ with _continued approval_ also performs _FCA activities_ on and from the _commencement date_ , performance of the _PRA senior management function_ will include the performance of those _FCA activities_ provided that the _firm_ has included details of the _FCA activities_ in a _scope of responsibilities form_ for that _PRA senior management function holder_ which is provided to the _PRA_ by 7 September 2016 in accordance with Key Function Holder ? Notifications 6.3.

2. (2) If, in relation to a _firm_ , a _PRA senior management function holder_ with _continued approval_ has been performing _FCA activities_ in the circumstances set out in (1), and that _person_ :

1. (a) ceases to perform the _PRA senior management function_ ;

2. (b) within three _months_ of ceasing performance, is approved to perform a new _PRA senior management function_ at the _firm_ ; and

3. (c) continues to perform the _FCA activities_ ,

3. performance of the new _PRA senior management function_ will include the performance of those _FCA activities_ , provided:

1. (d) the _PRA's_ approval to perform that _PRA senior management function_ continues in force;

2. (e) the _firm_ makes the notification required by SUP10C.9.8R(4) of the _FCA Handbook_ ; and

3. (f) that _person_ performs and is continuing to perform the _FCA activities_.

6.4

If a _PRA senior management function holder_ to whom 6.3 applies ceases to perform a _PRA senior management function_ but continues to perform the _FCA activities_ , 6.3(1) will continue to apply in respect of the performance of the _FCA activities_ until the earlier of:

1. (1) approval by the _FCA_ in respect of the performance by that _person_ of those _FCA activities_ as an _FCA governing function_ in relation to the _firm_ ; or

2. (2) three _months_ from the time that the _person_ ceased to perform that _PRA senior management function_.

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Forms

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Transitional Arrangements for New Senior Insurance Management Functions

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8.2

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9

Lloyd's

9.1

This Part applies to the _Society_ and _managing agents_ separately.